SOLVED PRACTICE WORKBOOK

Intellectual Property Rights and Patents - Solved Practice Workbook

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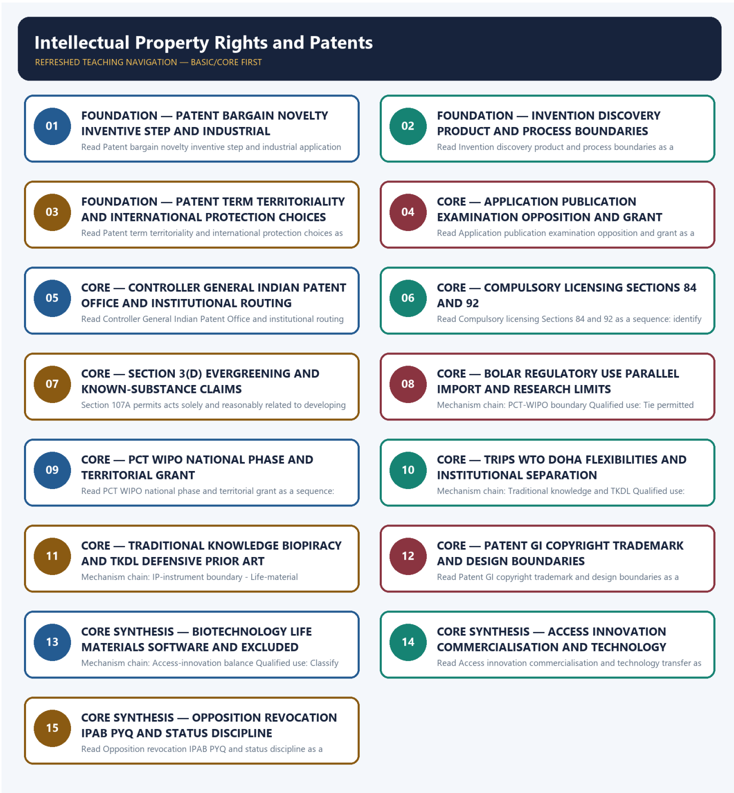

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Intellectual Property Rights and Patents - Solved Practice Workbook

BASIC MCQS / REMEDIATION

Q1. Which statement correctly identifies Patent bargain and criteria?

A. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: A. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q2. Which option preserves the technical boundary of Patent bargain and criteria?

A. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. B. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: B. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q3. Which statement uses Patent bargain and criteria without changing its institution, unit or status?

A. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: C. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q4. Which option avoids the standard UPSC close-option trap about Patent bargain and criteria?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: D. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q5. Which statement correctly identifies Invention-discovery boundary?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: A. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(c) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q6. Which option preserves the technical boundary of Invention-discovery boundary?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. C. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: B. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(c) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q7. Which statement uses Invention-discovery boundary without changing its institution, unit or status?

A. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. B. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. C. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: C. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(b) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q8. Which option avoids the standard UPSC close-option trap about Invention-discovery boundary?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: D. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q9. Which statement correctly identifies Product-process boundary?

A. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: A. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q10. Which option preserves the technical boundary of Product-process boundary?

A. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: B. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q11. Which statement uses Product-process boundary without changing its institution, unit or status?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: C. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q12. Which option avoids the standard UPSC close-option trap about Product-process boundary?

A. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: D. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q13. Which statement correctly identifies Term-territoriality boundary?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: A. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q14. Which option preserves the technical boundary of Term-territoriality boundary?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: B. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q15. Which statement uses Term-territoriality boundary without changing its institution, unit or status?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.

Answer: C. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q16. Which option avoids the standard UPSC close-option trap about Term-territoriality boundary?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: D. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q17. Which statement correctly identifies Application-publication-examination-grant ladder?

A. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: A. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q18. Which option preserves the technical boundary of Application-publication-examination-grant ladder?

A. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. B. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: B. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q19. Which statement uses Application-publication-examination-grant ladder without changing its institution, unit or status?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

Answer: C. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q20. Which option avoids the standard UPSC close-option trap about Application-publication-examination-grant ladder?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: D. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q21. Which statement correctly identifies Controller and Patent Office roles?

A. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: A. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q22. Which option preserves the technical boundary of Controller and Patent Office roles?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: B. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q23. Which statement uses Controller and Patent Office roles without changing its institution, unit or status?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: C. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q24. Which option avoids the standard UPSC close-option trap about Controller and Patent Office roles?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: D. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q25. Which statement correctly identifies Compulsory-licensing boundary?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: A. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q26. Which option preserves the technical boundary of Compulsory-licensing boundary?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

Answer: B. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q27. Which statement uses Compulsory-licensing boundary without changing its institution, unit or status?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Answer: C. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q28. Which option avoids the standard UPSC close-option trap about Compulsory-licensing boundary?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. D. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.

Answer: D. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q29. Which statement correctly identifies Section 3(d) two-limb filter?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: A. Explanation: Section 3(c) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q30. Which option preserves the technical boundary of Section 3(d) two-limb filter?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Answer: B. Explanation: Section 3(c) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q31. Which statement uses Section 3(d) two-limb filter without changing its institution, unit or status?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. C. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: C. Explanation: Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q32. Which option avoids the standard UPSC close-option trap about Section 3(d) two-limb filter?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: D. Explanation: Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q33. Which statement correctly identifies Bolar and research discipline?

A. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

Answer: A. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q34. Which option preserves the technical boundary of Bolar and research discipline?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: B. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q35. Which statement uses Bolar and research discipline without changing its institution, unit or status?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: C. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q36. Which option avoids the standard UPSC close-option trap about Bolar and research discipline?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

Answer: D. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q37. Which statement correctly identifies PCT-WIPO boundary?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: A. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q38. Which option preserves the technical boundary of PCT-WIPO boundary?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

Answer: B. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q39. Which statement uses PCT-WIPO boundary without changing its institution, unit or status?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: C. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q40. Which option avoids the standard UPSC close-option trap about PCT-WIPO boundary?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: D. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q41. Which statement correctly identifies TRIPS-WTO boundary?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: A. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q42. Which option preserves the technical boundary of TRIPS-WTO boundary?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: B. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q43. Which statement uses TRIPS-WTO boundary without changing its institution, unit or status?

A. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: C. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q44. Which option avoids the standard UPSC close-option trap about TRIPS-WTO boundary?

A. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Answer: D. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q45. Which statement correctly identifies Traditional knowledge and TKDL?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

Answer: A. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q46. Which option preserves the technical boundary of Traditional knowledge and TKDL?

A. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. B. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: B. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q47. Which statement uses Traditional knowledge and TKDL without changing its institution, unit or status?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: C. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q48. Which option avoids the standard UPSC close-option trap about Traditional knowledge and TKDL?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. D. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

Answer: D. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q49. Which statement correctly identifies IP-instrument boundary?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: A. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q50. Which option preserves the technical boundary of IP-instrument boundary?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: B. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q51. Which statement uses IP-instrument boundary without changing its institution, unit or status?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: C. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q52. Which option avoids the standard UPSC close-option trap about IP-instrument boundary?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. C. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: D. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q53. Which statement correctly identifies Life-material patentability boundary?

A. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: A. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q54. Which option preserves the technical boundary of Life-material patentability boundary?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: B. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q55. Which statement uses Life-material patentability boundary without changing its institution, unit or status?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: C. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q56. Which option avoids the standard UPSC close-option trap about Life-material patentability boundary?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

Answer: D. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q57. Which statement correctly identifies Software-claim discipline?

A. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: A. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q58. Which option preserves the technical boundary of Software-claim discipline?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

Answer: B. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q59. Which statement uses Software-claim discipline without changing its institution, unit or status?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: C. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q60. Which option avoids the standard UPSC close-option trap about Software-claim discipline?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: D. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q61. Which statement correctly identifies Access-innovation balance?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: A. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(b), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q62. Which option preserves the technical boundary of Access-innovation balance?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Answer: B. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q63. Which statement uses Access-innovation balance without changing its institution, unit or status?

A. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. D. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Answer: C. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(a), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q64. Which option avoids the standard UPSC close-option trap about Access-innovation balance?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: D. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q65. Which statement correctly identifies Commercialisation-chain boundary?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: A. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q66. Which option preserves the technical boundary of Commercialisation-chain boundary?

A. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

Answer: B. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q67. Which statement uses Commercialisation-chain boundary without changing its institution, unit or status?

A. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: C. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q68. Which option avoids the standard UPSC close-option trap about Commercialisation-chain boundary?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: D. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q69. Which statement correctly identifies Opposition-revocation-status boundary?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: A. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q70. Which option preserves the technical boundary of Opposition-revocation-status boundary?

A. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. B. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: B. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q71. Which statement uses Opposition-revocation-status boundary without changing its institution, unit or status?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: C. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q72. Which option avoids the standard UPSC close-option trap about Opposition-revocation-status boundary?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: D. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q73. Which statement correctly identifies IPAB date discipline?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: A. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q74. Which option preserves the technical boundary of IPAB date discipline?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: B. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q75. Which statement uses IPAB date discipline without changing its institution, unit or status?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. C. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: C. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q76. Which option avoids the standard UPSC close-option trap about IPAB date discipline?

A. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. B. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

Answer: D. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q77. Which statement correctly identifies Evidence and status firewall?

A. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. B. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. C. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: A. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q78. Which option preserves the technical boundary of Evidence and status firewall?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: B. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q79. Which statement uses Evidence and status firewall without changing its institution, unit or status?

A. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: C. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q80. Which option avoids the standard UPSC close-option trap about Evidence and status firewall?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Answer: D. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

PYQS AND ANSWER PRACTICE

AUDITED TOPIC-SPECIFIC PYQ OWNERSHIP

Audited ledgers route the 2019 Prelims demand on the Indian Patents Act and IPAB, the 2019 GS-III traditional-knowledge protection demand and the 2024 GS-III life-material IPR and commercialisation demand to this owner. Three representative cards preserve those routes without inventing an objective key, a patent count or a case outcome.

PYQ DEMAND CARD 1 - 2019 Prelims GS-I

Demand: Assess the routed statements concerning the Indian Patents Act and the Intellectual Property Appellate Board.

Status: The official objective key is unavailable locally. The card preserves the PYQ-date distinction: IPAB existed in 2019 but was abolished in 2021; no option letter is asserted.

Model solution: Controller and Patent Office roles: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **IPAB date discipline:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Demand decoding: Treat "PYQ DEMAND CARD 1 - 2019 Prelims GS-I" as a mechanism, category, institution, unit, date and status problem.

Detailed examiner-grade model answer:

Introduction and thesis: Controller and Patent Office roles: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **IPAB date discipline:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Analytical body:

1. **Claim and named evidence:** Demand: Assess the routed statements concerning the Indian Patents Act and the Intellectual Property Appellate Board. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Status: The official objective key is unavailable locally. The card preserves the PYQ-date distinction: IPAB existed in 2019 but was abolished in 2021; no option letter is asserted. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Controller and Patent Office roles: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **IPAB date discipline:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Executable exam-length answer / compression plan: Identify the object and actor; trace the technical mechanism; fix the measurement and platform; test each statement against source date, status rung and closest exception.

Why this earns marks: It prevents organisation, platform, process, application, regulatory role, target and observed outcome from being conflated.

How to improve this answer: For "PYQ DEMAND CARD 1 - 2019 Prelims GS-I", explain why the nearest distractor fails on mechanism, platform, unit, institution, legal status, maturity or date.

PYQ DEMAND CARD 2 - 2019 GS-III

Demand: Discuss how India protects traditional knowledge of medicine from pharmaceutical patenting.

Status: Verified routed Mains demand, 15 marks and 250 words; the route connects prior art, TKDL, patent-quality filters, institutions, limits and benefit-sharing concerns without inventing a case outcome.

Model solution: Invention-discovery boundary: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Section 3(d) two-limb filter:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Traditional knowledge and TKDL:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Access-innovation balance:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Demand decoding: The directive **answer** requires a direct position on "PYQ DEMAND CARD 2 - 2019 GS-III", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Invention-discovery boundary: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Section 3(d) two-limb filter:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Traditional knowledge and TKDL:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Access-innovation balance:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Analytical body:

1. **Claim and named evidence:** Demand: Discuss how India protects traditional knowledge of medicine from pharmaceutical patenting. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Status: Verified routed Mains demand, 15 marks and 250 words; the route connects prior art, TKDL, patent-quality filters, institutions, limits and benefit-sharing concerns without inventing a case outcome. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Invention-discovery boundary: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and

Section 3(d) supplies a specific known-substance filter. **Section 3(d) two-limb filter:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Traditional knowledge and TKDL:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Access-innovation balance:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Executable exam-length answer / compression plan: For 15 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "PYQ DEMAND CARD 2 - 2019 GS-III", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

PYQ DEMAND CARD 3 - 2024 GS-III

Demand: Explain the world scenario of IPR for life materials and the reasons for low commercialisation of Indian patents.

Status: Verified routed Mains demand, 10 marks and 150 words; the question's filing-rank premise is not repeated as a verified current statistic, and no patent count is supplied.

Model solution: Life-material patentability boundary: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Software-claim discipline:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Commercialisation-chain boundary:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Demand decoding: The directive **answer** requires a direct position on "PYQ DEMAND CARD 3 - 2024 GS-III", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Life-material patentability boundary: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Software-claim discipline:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Commercialisation-chain boundary:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Analytical body:

1. **Claim and named evidence:** Demand: Explain the world scenario of IPR for life materials and the reasons for low commercialisation of Indian patents. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Status: Verified routed Mains demand, 10 marks and 150 words; the question's filing-rank premise is not repeated as a verified current statistic, and no patent count is supplied. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Life-material patentability boundary: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Software-claim discipline:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Commercialisation-chain boundary:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

Executable exam-length answer / compression plan: For 15 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "PYQ DEMAND CARD 3 - 2024 GS-III", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

ORIGINAL MAINS 1 - 10 MARKS

Question: Explain the patentability criteria and distinguish an invention from a discovery. Answer in about 150 words.

Model thesis: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Invention-discovery boundary. **Named evidence/example:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.
- Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Qualified conclusion: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Invention-discovery boundary. **Named evidence/example:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Demand decoding: The directive **explain** requires a direct position on "Explain the patentability criteria and distinguish an invention from a discovery. Answer in...", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Invention-discovery boundary. **Named evidence/example:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Analytical body:

1. **Claim and named evidence:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Invention-discovery boundary. **Named evidence/example:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Executable exam-length answer / compression plan: For 10 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "Explain the patentability criteria and distinguish an invention from a discovery. Answer in...", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

ORIGINAL MAINS 2 - 10 MARKS

Question: Differentiate product and process patents and trace the application-to-grant ladder. Answer in about 150 words.

Model thesis: Claim: Product-process boundary. **Named evidence/example:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Application-publication-examination-grant ladder. **Named evidence/example:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.
- Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Qualified conclusion: Claim: Product-process boundary. **Named evidence/example:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Application-publication-examination-grant ladder. **Named evidence/example:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Demand decoding: The directive **trace** requires a direct position on "Differentiate product and process patents and trace the application-to-grant ladder. Answer...", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Claim: Product-process boundary. **Named evidence/example:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Application-publication-examination-grant ladder. **Named evidence/example:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Analytical body:

1. **Claim and named evidence:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Claim: Product-process boundary. **Named evidence/example:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Application-publication-examination-grant ladder. **Named evidence/example:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Executable exam-length answer / compression plan: For 10 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "Differentiate product and process patents and trace the application-to-grant ladder. Answer...", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

ORIGINAL MAINS 3 - 15 MARKS

Question: Examine Section 3(d), compulsory licensing and the Bolar provision as calibrated public-interest safeguards. Answer in about 250 words.

Model thesis: Claim: Compulsory-licensing boundary. **Named evidence/example:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Section 3(d) two-limb filter. **Named evidence/example:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Bolar and research discipline. **Named evidence/example:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.
- Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.
- Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.
- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Qualified conclusion: Claim: Compulsory-licensing boundary. **Named evidence/example:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Section 3(d) two-limb filter. **Named evidence/example:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Bolar and research discipline. **Named evidence/example:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Demand decoding: The directive **examine** requires a direct position on "Examine Section 3(d), compulsory licensing and the Bolar provision as calibrated public-...", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Claim: Compulsory-licensing boundary. **Named evidence/example:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Section 3(d) two-limb filter. **Named evidence/example:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Bolar and research discipline. **Named evidence/example:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Analytical body:

1. **Claim and named evidence:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

2. **Claim and named evidence:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
3. **Claim and named evidence:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
4. **Claim and named evidence:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Claim: Compulsory-licensing boundary. **Named evidence/example:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Section 3(d) two-limb filter. **Named evidence/example:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Bolar and research discipline. **Named evidence/example:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Executable exam-length answer / compression plan: For 15 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "Examine Section 3(d), compulsory licensing and the Bolar provision as calibrated public-...", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

ORIGINAL MAINS 4 - 15 MARKS

Question: Distinguish patents, GIs, copyright, trademarks and designs, and explain TKDL's defensive role. Answer in about 250 words.

Model thesis: Claim: Traditional knowledge and TKDL. **Named evidence/example:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IP-instrument boundary. **Named evidence/example:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.
- Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Qualified conclusion: Claim: Traditional knowledge and TKDL. **Named evidence/example:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IP-instrument boundary. **Named evidence/example:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Demand decoding: The directive **explain** requires a direct position on "Distinguish patents, GIs, copyright, trademarks and designs, and explain TKDL's defensive...", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Claim: Traditional knowledge and TKDL. **Named evidence/example:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IP-instrument boundary. **Named evidence/example:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Analytical body:

1. **Claim and named evidence:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Claim: Traditional knowledge and TKDL. **Named evidence/example:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IP-instrument boundary. **Named evidence/example:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Executable exam-length answer / compression plan: For 15 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "Distinguish patents, GIs, copyright, trademarks and designs, and explain TKDL's defensive...", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

ORIGINAL MAINS 5 - 20 MARKS

Question: Analyse patentability and governance issues concerning life materials, biotechnology and software-labelled claims in India. Answer in about 300 words.

Model thesis: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Life-material patentability boundary. **Named evidence/example:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Software-claim discipline. **Named evidence/example:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.
- Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.
- The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.
- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.
- Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Qualified conclusion: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Life-material patentability boundary. **Named evidence/example:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Software-claim discipline. **Named evidence/example:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:**

Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Demand decoding: The directive **analyse** requires a direct position on "Analyse patentability and governance issues concerning life materials, biotechnology and...", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Life-material patentability boundary. **Named evidence/example:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Software-claim discipline. **Named evidence/example:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Analytical body:

1. **Claim and named evidence:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
3. **Claim and named evidence:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject

matter under the applicable patent criteria and exclusions before concluding. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

4. **Claim and named evidence:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
5. **Claim and named evidence:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Life-material patentability boundary. **Named evidence/example:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Software-claim discipline. **Named evidence/example:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Executable exam-length answer / compression plan: For 20 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "Analyse patentability and governance issues concerning life materials, biotechnology and...", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.

ORIGINAL MAINS 6 - 20 MARKS

Question: Evaluate India's IPR architecture through innovation incentives, access, technology commercialisation, opposition, revocation and institutional status discipline. Answer in about 300 words.

Model thesis: Claim: Controller and Patent Office roles. **Named evidence/example:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Commercialisation-chain boundary. **Named evidence/example:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Opposition-revocation-status boundary. **Named evidence/example:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IPAB date discipline. **Named evidence/example:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.
- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

- A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.
- Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.
- The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.
- Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Qualified conclusion: Claim: Controller and Patent Office roles. **Named evidence/example:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Commercialisation-chain boundary. **Named evidence/example:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Opposition-revocation-status boundary. **Named evidence/example:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IPAB date discipline. **Named evidence/example:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Demand decoding: The directive **evaluate** requires a direct position on "Evaluate India's IPR architecture through innovation incentives, access, technology...", each clause, the exact technical mechanism, named Indian institution, dated status, application, risk and qualification.

Detailed examiner-grade model answer:

Introduction and thesis: Claim: Controller and Patent Office roles. **Named evidence/example:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Commercialisation-chain boundary. **Named evidence/example:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Opposition-revocation-status boundary. **Named evidence/example:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IPAB date discipline. **Named evidence/example:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Analytical body:

1. **Claim and named evidence:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
2. **Claim and named evidence:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
3. **Claim and named evidence:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
4. **Claim and named evidence:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. **Analysis:** Connect mechanism -> named

system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

5. **Claim and named evidence:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.
6. **Claim and named evidence:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** Connect mechanism -> named system/institution -> application or implementation pathway -> public or strategic consequence. **Qualification:** State platform, unit, source/date/status, maturity, regulatory limit, uncertainty, exception or residual risk.

Counter-position / limit: A launch, test, target, budget, capacity, approval, contract, dataset, benchmark or prototype cannot alone establish deployment, induction, commercial operation, safety, inclusion or observed outcome; test mechanism, status, scale and evidence.

Qualified conclusion: Claim: Controller and Patent Office roles. **Named evidence/example:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Commercialisation-chain boundary. **Named evidence/example:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Opposition-revocation-status boundary. **Named evidence/example:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IPAB date discipline. **Named evidence/example:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Executable exam-length answer / compression plan: For 20 marks, spend one-sixth of the time decoding the directive and drawing definition -> mechanism -> system/institution -> application/status -> risk/outcome; write four to seven claim -> named evidence -> analysis -> qualification points; reserve the final minute for unit, date, actor, platform, approval/test/deployment rung and residual-risk checks.

Why this earns marks: The answer obeys the directive, explains science rather than listing schemes, uses India-centric evidence and preserves technical, institutional, regulatory and maturity distinctions.

How to improve this answer: For "Evaluate India's IPR architecture through innovation incentives, access, technology...", replace the weakest catalogue point with one exact mechanism, named mission/institution/platform, dated status, measurable boundary, implementation constraint and answer-specific qualification.